UNIFREIGHT AFRICA LIMITED
versus
NICHOLAS MUKARATI
and
PRISCILLAH MGAZI N.O.

HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE; 20 June 2025 & 22 July 2025

Application for a declaratur

T. Mpofu for the applicant
A. K. Maguchu for the respondent

DUBE-BANDA J:

[1] This is an application for a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*]. The applicant is a company incorporated in accordance with the laws of Zimbabwe. The first respondent claims to be an employee of the applicant, which claim is rejected by the applicant as it will more fully appear later in this judgment. The second respondent is a Labour Officer employed by the Ministry of Labour and Social Services, who issued a ruling subject to this application.

[2] The applicant seeks an order in the following terms:
Be and is hereby;

i. ordered that the application be and is hereby granted.
ii. declared that the applicant was irregularly cited as an employer in the second respondent's ruling of 5 June 2023.
iii. declared that the second respondent's ruling of 5 June 2023 does not apply to the applicant.
iv. ordered that first respondent to pay the applicant's costs of suit at legal practitioner and client scale.

[3] The application is opposed by the first respondent. The second respondent has taken no part in these proceedings.

Factual background

[4] The background facts relevant to this case appear succinctly in the judgment of the Supreme Court in *Nicholas Mukarati* v *Pioneer Coaches (Private) Limited* SC 34/22. The facts are that the first respondent was employed by Pioneer Coaches (Private) Limited as its Managing Director. He was suspended from employment in April 2010 on certain allegations of misconduct. An internal hearing was conducted which found him guilty and recommended his dismissal from employment. He contested the propriety of those proceedings through a review application before the Labour Court. The review application resulted in a consent order. Consequent to the consent order, J. T. Mawire was appointed as the hearing officer, and on 22 February 2012, he found the first respondent not guilty of misconduct. It was ordered that he be reinstated without loss of salary and benefits from the date of suspension. After some bickering back and forth, the employer appealed the decision of Mr Mawire to an arbitrator. The arbitrator upheld the decision of the hearing officer, ordered reinstatement with no loss of salary and benefits from the date of dismissal. If reinstatement was no longer possible, the first respondent was to be paid damages.

[5] Aggrieved by the decision of the arbitrator, the employer appealed to the Labour Court. The Labour Court set aside the award and remitted the matter for assessment of an appropriate penalty. The second respondent appealed to the Supreme Court. The Supreme Court held that all the processes that happened were irregular and invalid. It made the following order:

i. "The matter is hereby struck off the roll with no order as to costs.
ii. In terms of this Court's review powers in s 25(1) of the Supreme Court Act [*Chapter 7:13*] the proceedings before the Labour Officer, the arbitrator and the Labour Court are hereby set aside."

[6] Subsequent to the order of the Supreme Court, the second respondent proceeded to quantify damages due to the first respondent. The second respondent ordered Pioneer Africa Limited and Pioneer Coaches Private Limited to pay the first respondent arrear salary in the sum of USD2 902 078.51.

[7] Unhappy about the award of the second respondent, the applicant on 6 December 2024 noted an appeal to the Labour Court. The appeal is pending in case number LCH 1260/24, and the sole ground of appeal is that the labour officer grossly and seriously misdirected

herself by making a ruling against the appellant when there was no employment relationship between the parties.

[8] In this application, the applicant seeks a *declaratur* that the second respondent acted contrary to law in issuing a damages award against it in circumstances where it was never the employer of the first respondent. It is noteworthy to state that both the appeal before the Labour Court and this application attack the same award, i.e., the second respondent's award.

Parties' submissions

[9] In summary, the applicant contends that a labour dispute arose between the first respondent and his employer Pioneer Coaches (Private) Limited, which dispute escalated to the Supreme Court. It is contended further that the first respondent conflated the identity of his employer Pioneer Coaches (Private) Limited with Pioneer Corporation Africa Limited, which changed its name to Unifreight Africa Limited – the applicant herein. It is averred that there is a distinction between Pioneer Coaches (Private) Limited and the applicant. It is alleged that the applicant was the sole shareholder in Pioneer Coaches (Private) Limited, and in July 2017 disposed of its entire shareholding to The Hayima Trust. It is contended that Pioneer Coaches (Private) Limited subsists to this date. It contended that the second respondent was wrong to burden the applicant with an obligation that does not belong to it. The applicant takes the view that it is immaterial that the ruling refers to Pioneer Africa and not Pioneer Corporation Africa Limited – the applicant.

[10] *Per contra*, the first respondent contends that an employer and employee relationship exist between him and the applicant. He avers that he was employed by the applicant as its managing director. He alleges that his letter of dismissal shows that he was employed by Pioneer Corporation Africa Limited – the applicant, and it is the applicant which has been driving the litigation against him. He contends that when he filed his claim for non-payment of terminal benefits at the Ministry of Labour, he was clear that he sued the applicant his employer. It was alleged that the applicant did not challenge being cited as the employer and chose to contest the matter on the merits. It was contended further that the argument that the applicant is not the employer is an afterthought and a contradiction to the position it took before the labour officer and the Labour Court. It was argued further that the contention that the applicant is not the employer is a strategy designed to evade liability.

Preliminary points

[11] In his opposing papers, the first respondent took several preliminary objections, *viz,* lack of jurisdiction; the application is a disguised appeal / review; improper application; *Lis pendens*; matter not capable of resolution on papers; and failure to exhaust domestic remedies. At the commencement of the hearing, I invited counsel to address the issue of whether this court has jurisdiction to hear this matter. To facilitate appreciable assistance, I requested the parties to first familiarize themselves with Supreme Court judgment of *TN Harlequin Luxaire Limited* v *Mberikunashe Matsvimbo & 14 Ors* SCB 84-22.

[12] Mr *Maguchu* counsel for the first respondent argued that whether an employment relationship subsists between the parties is where the shoreline of labour law begins. Counsel argued that in determining who the true employer is, the court will inevitably have to consider the Labour Act [*Chapter 28:01*], in particular s 2 therein. In addition, it was contended that the court will have to turn to the common law tests to ascertain whether an employment relationship exists between the parties. It was argued that the common law tests rest firmly in the province of labour law. Counsel argued, relying on *Nhari* v *Mugabe* SC 161/20 that it is settled that this court will not exercise jurisdiction over labour matters. It was contended that it was baffling that the applicant appeals the decision of the second respondent to the Labour Court, contending that it is not the employer, and turns to this court alleging that the matter is not a labour dispute. Counsel sought that this court declines jurisdiction and strike this matter off the roll with costs.

[13] Mr *Mpofu* counsel for the applicant argued that the question to be answered is whether labour law and its machinery can be employed outside the existence of an employer-employee relationship. Counsel argued that it is this court that has jurisdiction to grant the *declaratur* sought by the applicant. It was argued that the labour law governs the relationship between the employers and the employees. Counsel submitted that the jurisdiction of a Labour Officer is to deal with employment disputes, which in s 2 the Labour Act defines as "dispute means a dispute relating to any matter concerning employment which is governed by the Act". The center of the applicant's case is that it was not the employer of the first respondent, and hence the labour laws do not have application to this case. It was contended that this is not a labour matter, in that there is no employer – employee relationship between the applicant and the first respondent.

[14] In its heads of argument in *paragraph* 3.5 the applicant submitted that it falls upon this court to issue a *declaratur* sought by the applicant given that it is the only judicial authority

with the power to issue such a *declaratur.* It was submitted further that the Labour Court cannot issue a *declaratur*.

[15] It was argued that the point on jurisdiction was ill taken and must be refused.

The application of the law to the facts

[16] The law in this jurisdiction is that the Labour Court has, in the first instance, exclusive jurisdiction over matters of labour and employment. In *TN Harlequin Luxaire Limited* v *Mberikunashe Matsvimbo & 14 Ors* SCB 84-22 the Supreme Court answered the question whether the High Court could issue out a *declaratur* in a matter that is purely labour in nature. The appellate court noted that s 89(6) of the Labour Act gives the Labour Court, in the first instance, exclusive jurisdiction to hear labour matters. At *paragraph* 18 of the cyclostyled judgment, the court said:

> "The essence of the above provision is that the Labour Court has exclusive jurisdiction when it comes to issues dealing with labour matters at the first instance. This is further cemented by the provision of s 2A(3) of the Act which provides that the Labour Act shall prevail over any enactment that is inconsistent with it. Section 89(6) and s 2A (3) of the Labour Act therefore have to be read together. And the import of both provisions is that the inherent jurisdiction of the High Court becomes limited by the fact that the Labour Court has exclusive jurisdiction in respect of all labour matters at the first instance."

At *paragraph* 21 the court proceeded thus:

> "One of the pillars of those opinions which championed the overall and original jurisdiction of the High Court in all matters was that only the High Court has jurisdiction to issue a declaratory order, per s 14 of the High Court Act. However, in my view, this was an incorrect understanding of the nature of the remedy of a declaratory order. While s 14 of the High Court Act captures this remedy in its broadest and classical form as a "gentle order" which may be issued with or without any consequential relief, there is absolutely no doubt in my mind that the Labour Court in its daily operations does routinely issue declaratory orders, holding, for example, that an employee has been wrongly dismissed or certain actions constitute unfair labour practices and then proceeding to grant consequential relief. I make this point to emphasise that even in the absence of the *Nhari* v *Mugabe (supra)* matter, the view of this Court, would have been to uphold the Labour Court's exclusive jurisdiction in employment and labour matters. More so, because it would have taken very clear and explicit provisions in the new Constitution to oust the legal regime established and solidified before its enactment."

[17] In *TN Harlequin Luxaire Limited (supra*) the court definitively settled the question, and the answer is this: the High Court has no jurisdiction to issue a *declaratur* in respect of labour and employment matters. This pronouncement puts to rest the contention raised *ad nauseam* in this court that the Labour Court has no power to issue a *declaratur*. The applicant recycles this incorrect position in *paragraph* 11 of its founding affidavit, where it says:

> "Whilst this dispute is in essence a labour dispute the Labour Court does not have capacity to issue a *declaratur*. This is accordingly a proper matter in which this court can exercise its powers."

[18] This incorrect statement of the law is repeated in *paragraph* 4 (d) of the applicant's answering affidavit as follows "…..further and in any event the Labour Court does not have jurisdiction to issue a declaratur." Therefore, the contention that it falls upon this court to issue a *declaratur* sought by the applicant because the Labour Court cannot issue a *declaratur* is incorrect and untainable.

[19] Possible cognisant of this insurmountable huddle, Mr *Mpofu* argued that the fact that the parties have a labour dispute does not make this a labour matter. It was argued that a determination whether this is a labour matter or not must be made by this court. Counsel argued that *TN Harlequin Luxaire Limited* v *Mberikunashe Matsvimbo & 14 Ors S*CB 84-22 is distinguishable from this case, because in the former there existed an employer-employee relationship which does not exist in this case. My view is that this submission cannot withstand proper scrutiny. A "labour dispute" and a "labour matter" can only mean one and the same thing, i.e., an employment matter. In fact, s 2 of the Labour Act defines "a dispute to mean a dispute relating to any matter concerning employment which is governed by the Act." Therefore, the argument that the fact that the parties have a labour dispute does not make this a labour matter is of no moment. It is of no consequence. It falls to be rejected.

[20] The applicant argued that this is not a labour matter, because the applicant is not the employer and no labour matter can arise where there is no employment relationship. This is exactly what makes it a labour matter. I agree with Mr *Maguchu* that the first issue to be asked when seeking to resolve any labour law problem is whether the parties are indeed employee and employer within the meaning of the applicable statute and labour law. It is the labour dispute resolution mechanism that has jurisdiction to pronounce on the issue whether an employment relationship exist. The applicant is cognisant of this legal position; this is so because in its appeal pending before the Labour Court it attacks the Labour Officer for making a ruling against it when there is no employment relationship between the parties and seeks that the ruling be set aside. In this court, the argument is that the Labour Court has no jurisdiction to pronounce on the existence or absence of the employment relationship. This is a textbook case for approbating and reprobating. See *Trustees for the time being of Cornerstone Trust And 2 Others* v *NMB Bank Limited* (97 of 2021) [2021]

ZWSC 97 (24 September 2021). The net effect of what the applicant is doing is that on one hand, in the appeal it accepts that the Labour Court has jurisdiction to pronounce on the existence or otherwise of an employer – employee relationship, on the other hand in this court, it says the Labour Court does not have such a jurisdiction.

[21] The question whether there exists an employment relationship between the applicant and the first respondent is the very issue that the Labour Court has, in the first instance, exclusive jurisdiction to determine. It is the very question that the applicant seeks the Labour Court to answer in the appeal. The inescapable conclusion is that the subject matter of the dispute that has been brought before this court falls, in the first instance, within the exclusive jurisdiction of the Labour Court. As such, the resolution of whether there is an employer-employee relationship between the parties falls to be addressed by the Labour Court.

[22] In fact, the applicant's position, carefully scrutinised is that it is common cause that there is no employer – employee relationship between the parties. This explains the repeated and repeated submission that the Supreme Court in in *Nicholas Mukarati* v *Pioneer Coaches (Private) Limited* SC 34/22 has resolved this issue. My reading of the Supreme Court judgment does not suggest that it resolved the issue of whether there exists an employer – employee relationship between the parties. This is not the issue the Supreme Court was seized with. In any event, if indeed the Supreme Court resolved this issue, why still come to this court seeking the same answer. Approaching this court raising a question already answered by the Supreme Court would be inappropriate. It is not common cause that there is no employee and employer relationship between the parties. It is the very issue of contestation between the applicant and the first respondent.

[23] In conclusion, this is a labour matter. It cannot cease to be a labour matter merely because the applicant contends that it is not the employer. This is the very issue that the Labour Court has, in the first instance, exclusive jurisdiction to resolve. It is for these reasons that this court declines jurisdiction to hear this matter.

[24] There remains to be considered the question of costs. No good grounds exist for a departure from the general rule that costs follow the event. The first respondent is clearly entitled to his costs.

In the result, I order as follows:

a. The point *in limine* that this court has no jurisdiction to hear this matter is upheld.

b. The court declines jurisdiction on the basis that the dispute between the applicant and the first respondent is a labour matter.
c. The application is struck off the roll with costs.

DUBE BANDA J: ……..

Gill Godlonton and Gerrans, applicant's legal practitioners
Maguchu and Muchada Business Attorneys, 1st respondent's legal practitioners